the magistrate on the grounds that I did not consider myself morally bound to obey laws made by a Parliament in which I had no representation. Nor was it possible to receive a fair trial from a white judge:

> Why is it that in this courtroom I am facing a white magistrate, confronted by a white prosecutor, escorted by white orderlies? Can anybody honestly and seriously suggest that in this type of atmosphere the scales of justice are evenly balanced? Why is it that no African in the history of this country has ever had the honor of being tried by his own kith and kin, by his own flesh and blood? I will tell Your Worship why: the real purpose of this rigid color bar is to ensure that the justice dispensed by the courts should conform to the policy of the country, however much that policy might be in conflict with the norms of justice accepted in judiciaries throughout the civilized world. . . . Your Worship, I hate racial discrimination most intensely and in all its manifestations. I have fought it all my life. I fight it now, and I will do so until the end of my days. I detest most intensely the set-up that surrounds me here. It makes me feel that I am a black man in a white man's court. This should not be.

During the trial the prosecutor called more than one hundred witnesses from all over the country, including the Transkei and South West Africa. They were policemen, journalists, township superintendents, printers. Most of them gave technical evidence to show that I left the country illegally and that I had incited African workers to strike during the three-day stay-at-home in May 1961. It was indisputable — and in fact I did not dispute — that I was technically guilty of both charges.

The prosecutor had called Mr. Barnard, the private secretary to the prime minister, to testify to the letter I had sent the prime minister demanding that he call a national convention and informing him that if he did not, we would organize a three-day strike. In my cross-examination of Mr. Barnard I first read the court the letter I sent requesting that the prime minister call a national convention for all South Africans to write a new nonracial constitution.

> NM: Did you place this letter before your prime minister?
>
> WITNESS: Yes.
>
> NM: Now was any reply given to this letter by the prime minister?
>
> WITNESS: He did not reply to the writer.